

Tentative Rulings
May 8, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S-17 at jgarcez@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Nebedum v. Lennar Homes, LLC, et al*, Case No. CIVSB2438212

Motion to be Relieved as Attorney of Record for Plaintiff

5/8/26, 9:00 a.m., S-17

This matter was continued from its initial hearing date of March 12, 2026, to allow for a supplemental declaration

Here, the Anyiam Law Firm seeks to be relieved as counsel for Plaintiff. The motion is supported by a declaration establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** this unopposed motion. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

14. *Lozano v. American New Tires LLC, et al*, Case No. CIVSB2517208

Motion to be Relieved as Attorney of Record for Defendant GMA General Collision

Motion to be Relieved as Attorney of Record for Defendants Galdamez and Bonilla

5/8/26, 9:00 a.m., S-17

The Court would **CONTINUE** the matter to allow for supplemental declarations. While the Court is mindful that the declarations need to respect the privilege of attorney-client communications, *no facts* or even general averments are provided to support the motions. Rather, the “declarations” simply cite the rules of professional conduct, relevant law, and then indicate that the Court may inquire in camera. A recitation of law is not a declaration nor is it, alone, sufficient to support the motions.

18. *Fajardo v. Veg-Fresh Farms, Inc., et al*, Case No. CIVSB2102912

Plaintiff’s Motion for Preliminary Approval of Class Action Settlement

5/8/26, 1:30 p.m., Dept. S-17

This matter was continued from its initial hearing date of March 20, 2026

The Court would **CONTINUE** one last time.

At the last hearing, the Court continued the matter for clarification regarding the PAGA period, which appeared to be beyond the statute of limitations. (See Tentative, March 30, 2026.) At the hearing, the parties assured the Court that supplemental filings would rectify the concern. However, no supplemental filings have been submitted.
